

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter the complainant), on 16/02/2022, filed a complaint with the Spanish Agency for Data Protection, directed against the entity JUSTICIAPP, S.L. (hereinafter JUSTICIAPP or the complained party), with NIF B16822066, for not having "satisfactorily responded to the request for access" exercised before said entity on 09/02/2022. In this complaint, the appellant highlighted the following facts:

"On 09/02/2022, as a registered user on the Justiciapp website, I submitted to the data controller a request for access to my personal data: 1st regarding the third parties to whom access to my personal data has been granted for the purpose of carrying out commercial communications, as well as specifying which personal data has been transferred to these third parties; 2nd regarding personal data that is subject to international transfer and a copy of the adequate safeguards that said service providers have adopted; and 3rd regarding whether, despite having rejected the use of cookies without giving my consent, the fact of registering or browsing the Justiciapp website installs the aforementioned Google Analytics cookies, and if so, to indicate which personal data is processed, whether the use of Google Analytics implies its international transfer outside the European Economic Area, and to provide a copy of the adequate safeguards adopted in said transfer. On 15/02/2022, access to the requested information was denied, in my view unjustifiably, since the website indeed processes personal data, prevents its international transfer to third countries, and uses cookies capable of carrying out such international transfers."

With his complaint, he submits the following documentation:

1. Email dated 09/02/2022, sent by the complainant to the address "***EMAIL.1", with the subject "Exercise of right of access" and the following text:

"As a user of the JusticiApp website, I am exercising my right of access regarding the processing of my personal data in several aspects detailed in your privacy and cookie policy.

In point 4 of your privacy policy, it is indicated

"Commercial communications

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When you accept to receive commercial communications, you authorize us to process your email address, phone number, first name, and last name for this purpose. You can opt out of receiving these communications at any time. The legal basis for processing your personal data for this purpose is Article 6.1.f of the GDPR.

If you no longer wish to receive emails, you can unsubscribe at any time using the unsubscribe function provided in each email message, or you can contact us at ***EMAIL.1.

The legal basis that legitimizes the processing is the consent given at the moment you checked the box enabled in the form, or when you signed up to receive the newsletter from JUSTICIAPP, S.L. Additionally, based on our legitimate interest, we at JUSTICIAPP, S.L. may send you information about similar products and services. We will delete the email address once you have opted out of receiving the newsletter, unless it is also used and can be retained for other purposes listed in this Privacy Policy.

I hereby exercise my right of access regarding the third parties to whom my personal data has been provided for the purpose of carrying out commercial communications, as well as to specify which personal data has been transferred to these third parties.

In point 4 of your privacy policy, it states, "Some of our providers are based outside the European

Economic Area, so we may transfer your personal data to third countries. We always ensure that these transfers comply with the requirements of the GDPR, requiring service providers to adopt appropriate measures to protect the confidentiality, integrity, and security of personal data. Additionally, we are obliged to provide personal data to authorities that request it when necessary for compliance with a legal obligation or court order. In any case, all these data communications will comply with the provisions of the GDPR.”

I hereby exercise my right of access so that it specifies which personal data is subject to transfer and a copy of the appropriate guarantees that such service providers have adopted.

In your cookie policy, it is stated that Google Analytics is used. In section 5 it indicates, “To opt out of being tracked by Google Analytics on the Website, please visit the following link: <https://tools.google.com/dlpage/gaoptout?hl=en>.”

Unless you have adjusted your browser settings, our system will create Cookies as soon as you access the website and accept our Cookie Policy. Please note that all Internet browsers allow you to change this setting.”

I hereby exercise my right of access regarding whether, despite having rejected the use of cookies by not giving my consent, the act of registering or browsing the JusticiApp website installs the aforementioned Google Analytics cookies, and if so, to indicate which personal data is processed, and whether the use of Google Analytics involves its international transfer outside the European Economic Area.

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European and that a copy of the appropriate safeguards adopted in said transfer is provided.”

With this request for access to personal data, the claimant submitted a copy of the privacy policy and cookie policy of JUSTICIAPP and a copy of their ID.

2. Response from JUSTICIAPP, dated 15/02/2022, acknowledging receipt of the claimant's request and informing as follows:

“We would like to inform you that there is no, nor has there ever been, any personal data of yours (neither your name nor any other) that has been processed, used, or transferred by JusticiApp, S.L. You can verify this yourself in the App's search engine. We apologize for the misunderstanding, and we are at your complete disposal for any questions you may have.”

3. “Cookie Policy” available on the website “***URL.2”.

4. “Privacy Policy” available on the website “***URL.2”.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGD), which has provided a mechanism prior to the admission of claims filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors of the data, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not been designated, the claim was forwarded to the entity being claimed against for analysis and response to the claimant and this Agency within one month.

In the transfer document, dated 08/04/2022, it is indicated:

“Facts motivating the claim:

It is considered that an incomplete response has been received regarding the request for access made to the data controller.”

THIRD: On 04/05/2022, a response letter from the entity JUSTICIAPP was received by this Agency, in which it states the following:

1. After stating that it is the owner of the mobile application “JusticiApp,” which it refers to as the “Platform,” it indicates that upon receiving the communication of transfer from the AEPD, it proceeded to satisfy the interests of the claimant regarding the request for the right of access, sending them a

letter via email dated 04/05/2022, fulfilling said request. Based on this, it understands that the reasons that led to the claim have been disproven.

2. The request was not attended to in a timely and proper manner due to a specific and isolated error, as the claimant's information was not found in its information systems because only the database of judges and magistrates was leaked, and not that relating to lawyers, solicitors, and social graduates. Consequently, the claimant was informed that their data was not included in the JUSTICIAPP database.

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3. Having established the facts, an action plan has been implemented to address the situation, having improved its internal parameters regarding the search for the personal data processed.

With its response, it provides the following documents:

1. Email, dated 04/05/2022, sent to the claimant from the address “***EMAIL.2”, with the subject “exercise of right of access” and the following text:

“We are writing to you on behalf of the company JUSTICIAPP, S.L. regarding your request to exercise your right of access.

First of all, we would like to extend our sincerest apologies as, due to a human error, specific and isolated, when your request to exercise your right of access was received, a search was conducted using your name and surname in the JUSTICIAPP database, with the filter “judges and magistrates” applied. Therefore, the result of the search was that your personal data was not present in the information systems of JUSTICIAPP, and you were responded to in that regard.

Notwithstanding the above, once we have conveyed our apologies for any inconvenience that a delay in responding to your request may have caused you... we inform you that JUSTICIAPP is processing personal data, of which you are the owner, as we will see below.

However, prior to providing you with details of the information processed, we proceed to respond to the questions you raised through your request. That is:

(i) ... to date, none of the personal data of which you are the owner has been communicated to third parties. In conclusion, there has been no transfer of data for the indicated purpose (to carry out commercial communications).

(ii) Regarding the data that has been subject to international transfer and a copy of the adequate guarantees that such service providers have adopted, we inform you that your data is being processed by Google as a service provider related to office applications. In this regard, this provider offers adequate guarantees concerning the obligations set forth in European data protection regulations, which can be found at the following URL ***URL.1. JUSTICIAPP accepted, at the time of contracting Google's services, its General Conditions that regulate the provision of services with access to data and the international transfer of data, scrupulously complying with the provisions established in European and Spanish data protection regulations.

(iii) In relation to the question raised regarding the installation of Google Analytics cookies merely by browsing the website or registering, without having given your consent, we must clarify that analytical cookies are only installed in your browser if you expressly accept them.

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... despite having provided a response to the questions raised, we want to detail all the information that affects you as a result of the use of the JusticiApp Platform. You can consult its Privacy Policy here:

(i) Your data has been obtained through registration as a user on the Platform.

(ii) The categories of data that we currently process about you are identifying data, contact data, and

employment data, as well as any data that may have been extracted from the content you have generated as a user. Specifically:

Name and surname: A.A.A..

Email: ***EMAIL.3. .

Profession: "XXXXXX". .

ID (a copy provided by you in the email where you exercise your right of access).

IP and behavior on the platform in accordance with our Cookie Policy.

(iii) Your data is processed for the following purposes:

- Management of the contractual relationship generated through your registration on the JusticiApp Platform, based on compliance with the contractual relationship.
- Responding to questions raised by the user through the contact channels enabled, based on consent.
- Carrying out the preparation of reports, statistics, and/or analysis, based on a legitimate interest.
- Prevention and control of the use of the JusticiApp Platform for illegal or unauthorized purposes, with or without economic intent, based on the legitimate interest of the Company.
- Optimization of services and detection of errors and problems of the JusticiApp Platform, based on a legitimate interest of the Company.
- Compliance with legal obligations based on that legitimizing cause.

(iv) Your personal data will be retained by JUSTICIAPP in accordance with the following timeframes...

(v) All personal data provided by the user through the JusticiApp Platform may be communicated to:

- Public Administrations, in cases provided for by law, based on compliance with a legal obligation.
- Courts and Tribunals, in cases provided for by law, based on compliance with a legal obligation.

However, your data has not been communicated to third parties.

In addition, JUSTICIAPP will have the collaboration of third-party service providers who may have access to your personal data, which will be processed on behalf of and for JUSTICIAPP in connection with the provision of services...

Specifically, JUSTICIAPP will rely on the provision of services by third-party providers who carry out their activity, by way of example and not limitation, in the sectors of activity: legal advice and technological and computer services.

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We also inform you that you can exercise your rights of rectification, deletion, limitation, portability, and opposition of your personal data at any time in accordance with current regulations, as well as revoke the consents initially granted...

For any clarification or suggestion, you can contact JUSTICIAPP at the email address ***EMAIL.1.

Finally, we remind you that you can file a complaint with the Spanish Agency for Data Protection.

This communication is understood for the purpose of responding to your request."

2. Document detailing the "Procedure for the exercise and attention of rights in the field of data protection," issued on 05/01/2022.

FOURTH: On 11/05/2022, in accordance with Article 65 of the LOPDGDD, it was agreed to admit the complaint filed by the appellant for processing.

FIFTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

A) On 15/03/2022, a report was generated regarding the website "****URL.2" using the tool (...), which states:

1. A first-layer cookie notice with the text "We use cookies to ensure that we provide the best user experience on our website." It includes a button with the text "I agree," another button "I do not agree," and another with the text "Terms and conditions."

2. Without taking any action on the website, no cookies associated with Google Analytics are installed, only persistent cookies, and there is no traffic directed to google-analytics.com.

B) On 19/09/2022 and 20/09/2022, it was verified regarding the website “***URL.2”:

1. On 19/09/2022, there is a first-layer cookie notice with the following text:

“We use cookies and similar technologies, both our own and third-party, session or persistent, to securely operate our platform. Likewise, we use cookies to measure and obtain data on your browsing. You can configure and accept the use of cookies below. You can also modify your consent options at any time by visiting our Cookie Policy and obtain more information by clicking here.”

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It includes a button with the text “Accept all cookies” and another “Configure.”

2. On 19/09/2022, without taking any action on the website, no cookies associated with Google Analytics are installed.

3. There is a second-layer cookie notice distinguishing between technical cookies (enabled by default) and analytical cookies (disabled by default).

4. Only by accepting the analytical cookies are Google Analytics cookies installed in the browser, and an http request is sent to the subdomain (...).

5. On 20/09/2022, the cookie policy of the website states:

“[...]

Analytical Cookies

These Cookies allow tracking and analysis of user behavior, including quantifying the impacts of advertisements. The information collected through this type of Cookies is used in measuring the activity of the Platform to introduce improvements based on the analysis of usage data by users of the service.

[...]

Purpose

Google Analytics is a web analytics tool that uses cookie information to analyze the number of visitors and visits on the platform, the average duration of the visit, the average number of pages viewed per user, geographic reports, sociodemographic (based on language, location, internet provider, mobile device...

Expiration 2 years

Control and deletion of Cookies.

With the cookie configuration tool, you have the option to reject or accept Cookies that require your consent. You can also block and delete Cookies by changing your browser settings.

[...]”

6. On 20/09/2022, the Privacy Policy states:

That “browsing data on the platform: IP, behavior on the platform” is processed for the preparation of reports, statistics, and internal analyses to improve the services of the platform; prevention and control of the use of the Platform for illegal or unauthorized purposes, with or without economic intent; and optimization of services and detection of errors and problems of the Platform.

C) In response to the information request made by the Data Inspection, on 21/11/2022, the party being complained against informed as follows:

Regarding the complaining party, it states:

1. That the personal data they have of the complainant are name and surname, profession, email address, and an identifier, which consists of 28 alphanumeric digits.

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in uppercase and lowercase (provides a screenshot of its systems).

2. That the claimant's data has not been communicated to third parties for the purpose of commercial communications at any time, nor is there any plan to communicate it for that purpose.

In relation to the treatments related to Google Analytics and its website, it states:

3. The version of Google Analytics used is XXXXX (hereinafter, the tool), with basic configurations and event tracking. They only use the analytics service.

4. They use Google Analytics for the measurement and analysis of their platform, in order to optimize and improve the services offered.

5. That Google gave them the option and they chose to store the information on Google servers in Western Europe. (...)

6. The code of the Google Analytics tool is currently still embedded in their website.

7. That JUSTICIAPP does not communicate data of registered users on its website to third parties for commercial purposes. It also does not communicate any personal data to third parties regardless of the intended purpose, except for legal obligations.

8. That the functionality enabled through the code of the Google Analytics tool does not allow the visualization of personal data, making it impossible for the responding party to identify an interested party behind the statistical analyses provided by Google.

9. That the information they view as a result of the implementation of the Google Analytics code on their platform is not altered as a result of logging into Google, nor does it depend on whether the user has registered on their platform or not.

10. That the code of the Google Analytics tool is integrated directly when the user gives their consent through the platform by accepting the installation of cookies.

11. That it does not store personal data derived from the implementation of the tool.

12. That notwithstanding the above, the information obtained through Google Analytics, as properly recorded in the Cookie Policy, is stored for a maximum of two (2) years, provided that the user has expressly consented to its installation.

13. That the legal basis for the use of the tool is the user's consent when accepting cookies.

14. That Google is configured in its Terms of Service as the data processor, regardless of whether its clients can or cannot access data.

15. That JUSTICIAPP acts as the data controller despite not viewing personal data.

16. That the service conditions were accepted on 07/07/2019.

17. That the entity with which they subscribe to the provision of services is GOOGLE IRELAND LIMITED, a company that is located within the European Economic Area. Therefore, JUSTICIAPP does not directly carry out any type of international data transfer.

18. That, as reflected in the Terms of Service, Google could, in
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certain services or depending on the configurations of the contracting entities, carry out international data transfers to other companies located outside the European Economic Area, regulating them within the framework of Article 46 GDPR through standard contractual clauses (hereinafter SCC) in accordance with the model determined by Decision 2021/914.

19. The signed SCC provide adequate guarantees.

20. JUSTICIAPP informs in its Privacy Policy about the possible international data transfers that may take place.

21. It provides a Record of Processing Activities related to the processing "Analytics: allows tracking and analysis of user behavior, including the quantification of the impacts of advertisements." It includes, among other information:

a. "Categories of Data": "Anonymized browsing data: behavior on the platform, browsing information, and behavior."

b. JUSTICIAPP is the data controller.

c. GOOGLE IRELAND LIMITED is the data processor.

d. In the section "International Transfer - Recipient," it states that GOOGLE IRELAND LIMITED may transfer data to its subcontractors.

Regarding the processing related to the use of office applications, in relation to the website, it states:

22. That the version of the tool XXXXXX is used. That the configuration used is XXXXXXXX. That the authentication service is utilized.

23. That each user is given the option to log in and register through their Google account. The reason is to offer greater technical guarantees regarding the storage and management of passwords. That it can authenticate users without having to store and manage their passwords.

It provides a screenshot of "Login" where the option to "Log in" is available, or to click a link "Register" or a button "Sign in with Google."

It provides a screenshot of "Registration" where the fields "First and Last Name," "email," "password," "profession," and a button "Register" are displayed.

24. It states that:

"[...] it is the users themselves who, in exercising their autonomy of will and freedom: (i) voluntarily provide their data to Google, the owner of the Tool, authorizing the registration and authentication operations on third-party platforms, such as JUSTICIAPP; (ii) decide to give their consent to use the Tool as a mechanism for registration and identification, by selecting registration on the Platform through Google login; (iii) do not use the alternative mechanism proposed by the Platform, entering their personal data manually, opting for registration using the Tool."

25. That they do not communicate the personal data of registered users on their platform to third parties regardless of the purpose pursued, except for legal obligations.

26. That they do not communicate personal data to Google, but rather it is Google that, if the user is also a Google user and has given their consent, communicates the strictly necessary data provided by the user to JUSTICIAPP.

That Google communicates to them the data of name, email, Google profile picture if it exists, language preference. (Additionally, the platform requests the user's profession).

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27. That the data processed from users who do not use Google login includes their first name and last name, email address, password, and profession.

28. That they do not communicate personal data to third parties as a result of the implementation of the tool.

29. That they process the data in the European Economic Area.

30. That the relationship between Google and JUSTICIAPP is that of independent controllers, with Google acting as the data provider and JUSTICIAPP as the data recipient.

31. That the contracts governing the relationship between Google and JUSTICIAPP are those found at the URL <https://cloud.google.com/terms/google-entity>.

32. That they continue to use the tool since the necessary guarantees have been provided for the secure development of this tool and compliance with data protection regulations.

33. That JUSTICIAPP does not carry out international data transfers within the framework of the tool. (...).

E) The Inspection Services of the AEPD requested information from Google LLC regarding the personal data collected through Google Analytics due to visits by internet users to third-party websites that have implemented this tool.

On 11/15/2023, Google LLC provided the following information regarding the owners of the websites and the use of Google Analytics:

(...).

F) On 05/27/2024, a check was made regarding the website "***URL.2":

1. That there is a first-layer cookie notice whose configuration is identical to that checked on 09/19/2022.
2. That after visiting the website without interacting with it or accepting its cookies, no cookies are installed nor is there traffic directed to the domain google-analytics.com.
3. After rejecting all cookies through the second-layer cookie notice, no cookies are installed nor is there traffic directed to the domain google-analytics.com.
4. That there is a second-layer cookie notice that distinguishes between technical cookies (which cannot be enabled or disabled) and analytical cookies (disabled by default).
5. After rejecting all cookies through the second-layer cookie notice, and subsequently browsing the website, no cookies are installed nor is there traffic directed to the domain google-analytics.com.
6. After visiting the website and accepting all its cookies, Google Analytics cookies are installed and requests are sent to the domain (...). The cookie panel disappears, and there is no visible way to revoke consent.

G) On 06/13/2024, the cookie policy of JUSTICIAPP was checked again. The last update date is indicated as April 2022, and it offers the same information as noted in point 5 of section B) above.

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H) In response to the information request made by the Data Inspection on 06/21/2024, the requested party reported the following:

1. It provides a procedure for the exercise of rights. In this procedure, the date of the first version of the document is January 2022, and it was reviewed in October 2023.
2. It provides a screenshot that allows the user, by clicking on the screen, to consent to the sending of commercial communications about products and services related to JUSTICIAPP, as well as to consent to the sending of commercial communications about products and services not related to JUSTICIAPP.
3. JUSTICIAPP has not made any commercial communications to date regarding products and services similar to those offered by the Platform, nor about products unrelated to the Platform.
4. The way to revoke such consents is by sending a written request to JUSTICIAPP via email “***EMAIL.1” or by postal mail, as indicated in the privacy policy.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner.”

II

Preliminary Issues

This procedure aims to examine the complaint filed with this AEPD by the complainant regarding the right of access exercised before the entity JUSTICIAPP, which, in the opinion of the complainant, was not duly addressed. Therefore, this act does not imply any pronouncement on any of the issues raised during the analysis and evaluation of the aforementioned exercise of rights.

. Responsible Entity

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The entity JUSTICIAPP is the owner of the platform "Justiciapp," accessible through mobile devices and on the web "****URL.2" for registered users.

The exercise of the right of access pertains to the processing of personal data resulting from the use of the "Justiciapp" platform, including those processes involving the use of cookies related to the Google Analytics service and the international transfer of personal data.

It is advisable, first and foremost, to determine the status under which the claimed entity intervenes.

According to the provisions established in Articles 4.1 and 4.2 of the GDPR, the processing of personal data is confirmed, since the entity JUSTICIAPP collects and processes data through the aforementioned platform and website, related to registered users.

JUSTICIAPP carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR, which defines the figure of "data controller" as follows:

"Data controller: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States."

The data controller is so from the moment it decides the purposes and means of the processing. This is unequivocally expressed in the Guidelines 07/2020 of the European Data Protection Board (EDPB) on the concepts of data controller and processor in the GDPR:

"A data controller is the entity that determines the purposes and means of the processing, that is, the why and how of the processing. The data controller must decide on both purposes and means. However, some more practical aspects of the implementation ("non-essential means") can be left to the processor. It is not necessary for the controller to actually have access to the data being processed to qualify as a controller" (unofficial translation).

Determining who decides the means and purposes of data processing is crucial for establishing who is responsible for compliance with personal data protection regulations, and in particular who must provide information to the data subjects or address the rights of the data subject, etc.

In this case, it is established that JUSTICIAPP is the owner of the "Justiciapp" platform and the website of the same name and is the one who determines the purposes and means regarding the processing of data that involves access to and use of these means by users. Therefore, it is the entity responsible for such processing.

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This circumstance has not been discussed by JUSTICIAPP and is expressed as such in its Privacy Policy.

. Personal data and international data transfers.

In its written exercise of the right, the claimant expressly requests that they be informed of the personal data processed in the event that the registration or browsing on the website installs Google Analytics cookies and whether this implies the international transfer of personal data.

Therefore, taking into account the object of the right exercised by the claimant, it is necessary to analyze whether the use of cookies by the website involved, at the time the right was exercised, the collection of personal data from users.

Regarding this issue, the AEPD decided to carry out preliminary investigative actions, the result of which, as noted in the background of this act, has allowed for the confirmation that the use of cookies by the "Justiciapp" website involves the collection of personal data from users and its international

transfer.

It is important to highlight the information provided to users on the website at the time the right of access was exercised by the claimant.

Thus, in the Cookie Policy, it was stated that "JUSTICIAPP, S.L., by automatically obtaining information from the website through Cookies, may collect personal data from Users, relating to their computing device, the use of services, and their behavioral habits. This information may include, among others, data about language, the pages or functionalities of the website most used, keywords, date, time, duration of time Users spend on certain types of pages, IP address, advertising identifier, and similar information related to the use of the website. JUSTICIAPP, S.L., can collect such information through the use of cookies.

Additionally, there was a warning about the use of Google Analytics.

Well, the actions carried out allow us to conclude that Google Analytics cookies collect personal data from users, which are subject to international transfer.

Among these data are unique user identifiers (_ga and _gid), the IP address, as well as other data associated with the browser and the browsing itself or system information, among others.

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific factors characteristic of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

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It should be noted that online identifiers, such as IP addresses or information stored in cookies, can commonly be used to identify a user, especially when combined with other similar types of information. This is illustrated in Recital 30 of the GDPR, which states that the assignment of online identifiers such as IP addresses and cookie identifiers to natural persons or their devices can "leave traces that, particularly when combined with unique identifiers and other information received by the servers, can be used to create profiles of natural persons and identify them."

The CJEU has already stated that IP addresses are personal data (see Case C-597-19, paragraph 102 and C-582/14, paragraph 49). The IP address does not lose its nature as personal data simply because the means of identification reside with third parties. Furthermore, the case in question is very different, as the IP address can be combined with other elements.

Regarding unique identifiers, they are intended to differentiate individuals and make them identifiable.

These identifiers can also be combined with other information, such as the address of the visited website, metadata related to the browser and operating system, the time and data related to the website visit, and the IP address. This combination of information further differentiates individuals.

That is to say, the combination of several elements may allow for the individual identification of visitors to the "Justiciapp" website, where Google Analytics is implemented, regardless of whether these visitors can be identified through unique identifiers, without the need for such data combination.

If the contrary were decided, the scope of the right to data protection, guaranteed by Article 8 of the Charter of Fundamental Rights of the European Union, would be undermined, as it would allow companies to specifically select individuals along with personal information (for example, when visiting a specific website) while simultaneously denying them any right to protection against such singling out. Such a restrictive opinion that would undermine the level of protection for individuals is also not in line with the jurisprudence of the Court of Justice of the European Union (hereinafter, CJEU), which has repeatedly ruled that the scope of the GDPR must be understood very broadly (see, for example, Judgment C-439/19, paragraph 61).

For all these reasons, it must be considered that the data in question are personal data within the meaning of Article 4.1 of the GDPR.

All of those personal data collected through a website that integrates the Google Analytics function are transferred to Google's servers in the United States. Moreover, in the terms accepted by the holder of a website that incorporates this function, it is contemplated that Google may store and process personal data in any country where Google or any of its data processors maintain facilities. It is known that Google has facilities in the U.S.

Returning to the document sent by Google LLC dated April 9, 2021, in the last paragraph of the response to question 8, Google states that all data

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Data collected through Google Analytics is hosted in the United States. Therefore, the data collected on the “Justiciapp” website through Google Analytics is transferred to the United States.

Transfers to Google include at least the following data: content of the cookie _ga, and gid, browser data, IP address, and the webpage visited. The IP address is anonymized by truncating the last octet, although it continues to be transmitted and received by Google in full, albeit for a short period of time.

III

Right of Access

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, objection, right to restriction of processing, and right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Article 12 “Transparency of Information, Communication, and Modalities for Exercising Rights” of the GDPR states the following:

“1. The data controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 related to processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means.

2. The data controller shall facilitate the exercise of the rights of the data subject under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act on the request of the data subject in order to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is not in a position to identify the data subject.

3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided otherwise.”

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4. If the data controller does not proceed with the request of the data subject, they shall inform the data subject without delay, and no later than one month after receiving the request, of the reasons for their inaction and the possibility of lodging a complaint with a supervisory authority and exercising legal

actions.

5. The information provided under Articles 13 and 14, as well as any communication and any action taken under Articles 15 to 22 and 34, shall be free of charge. When requests are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may: a) charge a reasonable fee based on the administrative costs incurred to provide the information or communication or to carry out the requested action, or b) refuse to act on the request. The data controller shall bear the burden of demonstrating the manifestly unfounded or excessive nature of the request.

6. Without prejudice to the provisions of Article 11, when the data controller has reasonable doubts regarding the identity of the natural person making the request referred to in Articles 15 to 21, they may request the additional information necessary to confirm the identity of the data subject.

7. The information that must be provided to data subjects under Articles 13 and 14 may be transmitted in combination with standardized icons that allow for a readily visible, intelligible, and clearly legible overview of the intended processing. The icons presented in electronic format shall be mechanically readable.

8. The Commission shall be empowered to adopt delegated acts in accordance with Article 92 to specify the information to be presented through icons and the procedures for providing standardized icons.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR). Furthermore, the data controller is obliged to respond to requests made without undue delay and, in any case, within one month from the receipt of the request, unless they can demonstrate that they are unable to identify the data subject; as well as to state the reasons in case they do not comply with the request.

It follows from the above that the request for the exercise of rights made by the data subject must be responded to in all cases, with the burden of proof of compliance with this duty resting on the data controller.

This obligation to act is not enforceable when the data controller can demonstrate that they are unable to identify the data subject (in the cases referred to in Article 11.2 of the GDPR). In cases other than those provided for in this article, where the data controller has reasonable doubts regarding the identity of the requester, they may require additional information necessary to confirm that identity.

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In this regard, Recital 64 of the GDPR states the following:

“(64) The data controller must use all reasonable measures to verify the identity of data subjects who request access, particularly in the context of online services and online identifiers. The controller must not retain personal data solely for the purpose of being able to respond to potential requests.”

In general, upon receiving a request to exercise rights, the responsible entity must evaluate it individually to determine its specific content, taking into account that the obligation to facilitate the exercise of the rights of data subjects provided for in Article 12.2 of the GDPR entails that the controller grants the broadest possible effect to the exercised right. A restrictive interpretation of the scope of the request made will be avoided, as well as assessing the reasons why the data subject submits such a request, which in no case can condition the response provided.

This evaluation must first establish the personal data referred to in the request. As a rule, it should be understood that the request refers to all data, unless the data subject clearly specifies otherwise and this limitation, included in the request, does not raise doubts about the true intention of the data subject that would require the controller to interpret it.

In determining the object referred to in the request, the context in which it occurs, the specific circumstances of the case, and any information that the data subject includes in it may be considered. The evaluation carried out by the responsible entity must always reflect the situation at the time it received the request, thus ensuring that the response aligns with the information available at that time.

Regarding the right of access, the GDPR provides in Article 15 the following:

“1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them are being processed and, if so, the right of access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any...”

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information available about its origin;

h) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and expected consequences of such processing for the data subject.”

2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject submits the request by electronic means, and unless they request that it be provided in another way, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

The data subject may exercise a series of rights before the data controller, including the right of access to the personal data being processed, which allows the citizen to obtain confirmation of whether their personal data is being processed and, if so, access to that data and information about the processing, including the information listed in the aforementioned Article 15.

In relation to the present case, it is important to highlight that the information provided must include information about the recipients or categories of recipients to whom the personal data has been or will be communicated, in particular recipients in third countries or international organizations; and the safeguards relating to international data transfers.

Regarding the information to be provided about international transfers of personal data that are carried out, the European Data Protection Board (EDPB), in its Guidelines 01/2022 on the rights of data subjects, right of access, in its version adopted on 28/03/2023, states the following:

“122. Information about the planned data transfers to a third country or to an international organization, including the existence of an adequacy decision by the Commission or appropriate safeguards, must be provided under Article 13, paragraph 1, letter f), and Article 14, paragraph 1, letter f), of the GDPR. In the context of a request for access under Article 15, Article 15, paragraph 2, only requires information about the appropriate safeguards under Article 46 of the GDPR in cases where a transfer to a third country or to an international organization actually occurs.”

In this case, it is noted that the complainant formally approached the entity JUSTICIAPP requesting access to their personal data, without this entity providing an adequate response to the exercise of the right.

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It is an undisputed fact that the claiming party exercised their right of access to their personal data before JUSTICIAPP via an email dated 09/02/2022, sent to the address “***EMAIL.1”, nor is the object of the right disputed, that is, the processing of personal data to which the claiming party refers in said email. The claiming party expressly indicates that they exercise the right of access as a user of the “Justiciapp” website in relation to the following three aspects:

1. “I hereby exercise my right of access regarding the third parties to whom access to my personal data has been granted for the purpose of carrying out commercial communications, as well as specifying which personal data has been subject to transfer to these third parties.”
2. “I hereby exercise my right of access so that it is specified which personal data is subject to transfer and a copy of the adequate safeguards that such service providers have adopted.” This request, according to the claiming party, is made due to the information contained in the Privacy Policy of JUSTICIAPP, in which said entity warns that some of its providers are based outside the EEA and that therefore they may transfer personal data to third countries.
3. “I hereby exercise my right of access regarding whether, despite having rejected the use of cookies and not providing my consent, the act of registering or browsing the JusticiApp website installs the aforementioned Google Analytics cookies, and if so, to indicate which personal data is processed, whether the use of Google Analytics involves its international transfer outside the European Economic Area, and to provide a copy of the adequate safeguards adopted in such transfer.” The claiming party relates this aspect to the information provided to users of the website in the cookie policy to state the use of Google Analytics.

For a correct analysis of the right exercised and the actions carried out by JUSTICIAPP for its attention, it is necessary to take into account that it is not recorded in the proceedings that the claiming party had accepted to receive commercial communications. Regarding the acceptance or rejection of cookies, the claiming party stated in their exercise of the right that they did not provide their consent to the use of Google Analytics cookies.

Likewise, it is evidenced in the proceedings that the entity JUSTICIAPP responded to the right of access exercised by the claiming party on 15/02/2022. However, said response was limited to informing that “there is no, nor has there ever been, any personal data of yours (neither your name nor any other) that has been processed, used, or transferred by JusticiApp, S.L.”

This response does not constitute adequate attention to the claiming party's right of access. The entity JUSTICIAPP itself, during the transfer of the complaint, noted in the Second and Third Facts of this resolution, admits that with that response the right of access was not attended to in a timely and proper manner and that the claiming party's data is recorded in its systems.

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Thus, on 04/05/2022, JUSTICIAPP sent a new email response to the claimant regarding the right of access, providing all the information established in Article 15 of the GDPR, as detailed in Fact Three. Specifically, information was provided about the personal data being processed, the purposes, retention periods, possible data transfers, and categories of recipients, the exercise of rights, and the possibility of filing a complaint with the AEPD.

Additionally, regarding the three specific aspects referred to in the right of access exercised by the claimant, that entity informed as follows:

- “(i) ... to date, none of the personal data of which you are the owner has been communicated to third parties. In conclusion, there has been no data transfer for the indicated purpose (to carry out commercial communications).
- (ii) Regarding the data that has been subject to international transfer and a copy of the adequate

guarantees that such service providers have adopted, we inform you that your data is being processed by Google as a provider of services related to office applications. In this regard, this provider offers adequate guarantees concerning the obligations set forth in European data protection regulations, which can be found at the following URL ***URL.1. JUSTICIAPP accepted, at the time of contracting Google's services, its General Conditions regulating the provision of services with access to data and the international transfer of data, scrupulously complying with the provisions established in European and Spanish data protection regulations.

(iii) Regarding the issue raised concerning the installation of Google Analytics cookies merely by browsing the website or registering, without having given your consent, we must clarify that analytical cookies are only installed in your browser if you expressly accept them."

Regarding the content of this response, it is taken into account, on the one hand, as the claimant itself indicates in its exercise of the right of access, that the Privacy Policy of the website, at the time of exercising the right, referred to the use of personal data related to email, phone, first name, and last name for the purpose of carrying out commercial communications only if the interested party chose to accept these communications by checking the box enabled in the form or by signing up to receive the newsletter, and it was warned that the interested party could cancel the "subscription" at any time. It has already been stated that there is no record that the claimant provided this consent, nor has it made any statement in this regard.

On the other hand, information is provided regarding the international transfers of personal data that are carried out, linked to office applications, and a link to the information regarding the adequate guarantees that the service provider has adopted is included.

As for cookies, the inspection services of this AEPD verified at different times (i) that the first-layer notices inserted on the website informed about the use of cookies and included a button with the text "I agree" and another

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button "I do not agree"; (ii) that, without taking any action on the website, no cookies associated with Google Analytics are installed, only persistent cookies, nor is there any traffic directed to google-analytics.com; and (iii) that only by accepting analytical cookies are Google Analytics cookies installed in the browser and an http request is sent to the domain "google-analytics.com".

Given that the claimant stated that they rejected the use of third-party cookies for statistical purposes, nothing leads to the conclusion that cookies other than those strictly necessary or technical could have been installed merely by registering on the website, accessing it, or browsing it. That is to say, it is not possible to conclude that the defendant effectively collected personal data from the claimant using the Google Analytics tool.

Therefore, with this second response sent by JUSTICIAPP to the claimant, the right of access to personal data exercised by them is considered to have been addressed.

Although this response should be classified as untimely, as the established deadline for issuing it has been exceeded, the AEPD, considering the concurrent circumstances, finds it appropriate to proceed with the filing of the proceedings without the need to clarify administrative responsibilities within the framework of a sanctioning procedure.

In this regard, it is important to warn about the exceptional nature of the sanctioning procedure, from which it follows that, whenever possible, preference should be given to alternative mechanisms if they are supported by current regulations, as is the case here, where the issues raised by the claimant in their complaint have been resolved.

In summary, the applicable principles to the sanctioning procedure must be recalled. The AEPD exercises its sanctioning power ex officio. Therefore, it is the exclusive competence of the AEPD to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision on its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of

elements that justify the initiation of sanctioning activity, circumstances that do not exist in the present case.

IV

International transfers resulting from the use of Google Analytics. Current legal framework.

Notwithstanding the above, and considering that JUSTICIAPP has stated that it continues to use the Google Analytics tool, which involves the collection of personal data from users of the website

“***URL.2” and its international transfer, it is deemed appropriate to point out that the entity JUSTICIAPP, as the controller of such personal data collection and its international transfer to entities located in a third country, must adjust its actions to the provisions established in the GDPR and the LOPDGDD, paying attention to the information that it must provide to users of its website, especially regarding the different data processing, their legal bases, and their purposes. Likewise, it must keep in mind that the

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The collection of personal data resulting from the use of the tool must be carried out with the prior acceptance of the users and that such use involves international data transfers.

In relation to international transfers of personal data, it must be clearly informed whether or not they are carried out and, if so, all details established in section f) of Article 13.1 of the GDPR must be provided to the users of the website (“f) where applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate safeguards and the means to obtain a copy of these or the fact that they have been provided”).

This mandatory information is related to the protection system established for international transfers in Articles 44 and following of the GDPR.

Article 44 establishes a general principle, according to which data may only be exported if, on the one hand, the processing subject to the transfer is lawful and complies with the provisions of the GDPR and, on the other, if it meets the conditions established in Chapter V of the same legal text (Articles 44 to 50).

Article 45 of the GDPR establishes, as a main rule, that a transfer of personal data may be carried out if the recipient country, territory, or international organization guarantees an adequate level of protection recognized by an adequacy decision issued by the European Commission.

In the absence of such an adequacy decision, Article 46 of the GDPR authorizes transfers if the data controller or processor has provided adequate safeguards, materialized through the instruments referred to in the same article.

Among the safeguards that data controllers can offer in accordance with the provisions of this Article 46 of the GDPR are the signing of standard contractual clauses approved by the European Commission. However, it should be noted that the CJEU has stated that there are situations in which these clauses do not constitute a sufficient means to ensure the effective protection of personal data transferred to a third country and may require the adoption of complementary measures.

The next scenario contemplated by the GDPR, in the absence of an adequacy decision and adequate safeguards, is to allow transfers if any of the conditions set forth in Article 49.1 of the GDPR are met. If none of the circumstances provided for in the preceding articles were to occur, the carrying out of international transfers of personal data would not be covered, and in such case, the use of the Google Analytics service would be inappropriate.

Currently, the legal framework for these international transfers of data

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is determined by the Implementing Decision (EU) 2023/1795 regarding the adequacy of the level of protection of personal data in the EU-U.S. Privacy Shield Framework in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council, approved by the Commission on 10/07/2023, so that international transfers carried out after this date may be covered by the aforementioned Decision.

On the website ***URL.3 it can be verified that Google LLC has certified its adherence to the principles of the EU-U.S. Privacy Shield Framework until 13/09/2025, due to the need to renew this certification annually. Therefore, currently, international transfers of data to Google LLC in the U.S. are covered by the EU-U.S. Privacy Shield Framework.

Thus, in accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the entity JUSTICIAPP, S.L., with NIF B16822066, and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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